

9	Tashoff vs. City of San Juan Capistrano 2024-01438234	Motion for Summary Judgment and/or Adjudication Off Calendar
10	Uvina vs. Banda 2025-01501195	Motion to Be Relieved as Counsel of Record The motion by Anthony J. Nunes, of Law Office of Anthony J. Nunes, to be relieved as counsel of record for Luis Uvina, is continued to 10/26/26 at 1:30 PM in Department C11. Counsel is ordered to file a proof of service showing proper service of the moving papers on the client and all parties that have appeared. (Cal. R. Ct. Rules 3.1300(c), 3.1362(d); Code Civ. Proc., § 1013a.) Unless the proof of service is filed by 10/02/26, the motion may be taken off calendar. Counsel for plaintiff is ordered to give notice of the continuance to the client and all parties that have appeared. Motion to Set Aside/Vacate Default Defendants Luis Banda and Maria Banda's motion to vacate and set aside default is granted. Defendants move, under CCP section 473, subdivisions (b) and (d), for an order setting aside the default entered against them on 11/5/25 (ROA 20), The Court finds Defendant should be granted discretionary relief under CCP section 473, subdivision (b). The statute provides, in relevant part, that: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) If a party moves promptly for relief from default, or if the granting of the relief from default will not prejudice the opposing party (other than losing the advantage of the default), "very slight evidence is required to justify a trial court's order setting aside a default." (<i>Iott v. Franklin</i> (1988) 206 Cal.App.3d 521, 526, citing <i>Shamblin v. Brattain</i> (1988) 44 Cal.3d 474, 478.) The statute is to be "liberally construed" as "sound policy favors the

		determination of actions on their merits.” Any doubts “must be resolved in favor of the party seeking relief from default.” (<i>Shapell Socal Rental Properties, LLC v. Chico's FAS, Inc.</i> (2022) 85 Cal.App.5th 198, 212.) A motion for discretionary relief under section 473(b) must satisfy three requirements. First, the motion must be made “within a reasonable time” and “in no case exceeding six months” after the entry of default (unless relief is sought on equitable grounds). (Code of Civ. Proc. § 473, subd. (b).) Second, the motion “shall be accompanied” by a copy of the answer or other proposed pleading to be filed, “otherwise the application shall not be granted.” (Code of Civ. Proc. § 473, subd. (b).) Lastly, the motion must show that default was taken as a result of mistake, inadvertence, surprise, or excusable neglect. The Court finds all three requirements have been satisfied, here. First, the motion was timely made within approximately five months of the entry of default. (See ROA 20, 55.) Any delay was not so unreasonable as to warrant the denial of relief. Second, the motion is accompanied by a copy of the proposed answer. (See ROA 55, Exh. A.) Lastly, the motion is supported by declarations from each of the defendants, explaining the difficult health and other personal circumstances during the time they were purportedly served with process and when their default was entered. (See ROA 28.) Plaintiff’s arguments as to why relief should be denied are not persuasive in light of the liberal policy favoring relief, and in light of the circumstances presented in the moving papers. The Court, hereby, orders the Default entered against Defendants (ROA 20) to be vacated and set aside. Defendants shall file and serve their proposed answer by 9/25/26, and give notice of the ruling. Default Prove-Up Hearing Off calendar Clerk to give notice.
11	Val-Chris Investments, Inc. vs. Osoka 2025-01536941	Motion for Change of Venue (Transfer) The motion by Defendant Camelita Osoka (“Osoka”) for an order transferring this action is GRANTED. The unopposed request by Plaintiff Val-Chris Investments, Inc. (“Plaintiff”) for the Court to take judicial notice of the docket in this